AUTHORIZATION			
	NAME AND TITLE	**SIGNATURE**	**DATE**
Issued by:	Candace Alva, Director RA/QA	See M-Files	See M-Files
Reviewed and Approved by:	Brian Bishop, Chief Operating Officer	See M-Files	See M-Files
Reviewed and Approved by:	Bruno Bendavid, Product Manager and Privacy & Security Officer	See M-Files	See M-Files
Reviewed and Approved by:	Natan Blanks, SVP R&D and GM Israel Operations	See M-Files	See M-Files
Reviewed and Approved by:	Candace Alva, Director RA/QA	See M-Files	See M-Files

REVISION HISTORY				
REV. #	**CO #**	**DESCRIPTION**	**PREPARED BY**	**DATE**
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01.01	DCO00057	Remove Distribution List as document is maintained electronically. Update to section 2.3.3 and correction of typos.	Candace Alva	October 28, 2021

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Business Associates and Breach Notification

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1 Business Associates

1.1 HIPAA Privacy Rule Language

(1) *Business Associate Contracts*

(i) The contract or other arrangement required by §164.502(e)(2) must meet the requirements of §164.502 (e)(2),(e)(3), or (e)(5) of this section, as applicable.

(ii) A covered entity is not in compliance with the standards of §164.502(e) of this paragraph, if the covered entity knew of a pattern of activity or practice of the business associate that constituted a material breach or violation of the business associate's obligation under the contract or other arrangement, unless the covered entity took reasonable steps to cure the breach or end the violation, as applicable, and if such steps were unsuccessful, terminated the contract or arrangement, if feasible.

(2) *Implementation specifications: Business associate contracts.* A contract between the covered entity and a business associate must:

(i) Establish the permitted and required uses and disclosures of protected health information by the business associate. The contract may not authorize the business associate to use or further disclose the information in a manner that would violate the requirements of this subpart, if done by the covered entity, except that:

(A) The contract may permit the business associate to use and disclose protected health information for the proper management and administration of the business associate; and

(B) The contract may permit the business associate to provide data aggregation services relating to the health care operations of the covered entity.

(ii) Provide that the business associate will:

(A) Not use or further disclose the information other than as permitted or required by the contract or as required by law;

(B) Use appropriate safeguards and comply, where applicable, with the Security Rule with respect to electronic protected health information, to prevent use or disclosure of the information other than as provided for by its contract;

(C) Report to the covered entity any use or disclosure of the information not provided for by its contract of which it becomes aware, including breaches of unsecured protected health information as required by § 164.410;

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(D) In accordance with § 164.502(e)(1)(ii), ensure that any subcontractors that create, receive, maintain or transmit protected health information on behalf of the business associate agree to the same restrictions and conditions that apply to the business associate with respect to such information;

(E) Make available protected health information in accordance with §164.524;

(F) Make available protected health information for amendment and incorporate any amendments to protected health information in accordance with §164.526;

(G) Make available the information to provide an accounting of disclosures in accordance with §164.528;

(H) To the extent the business associate is to carry out a covered entity's obligation under this subpart, comply with the requirements of this subpart that apply to the covered entity in the performance of such obligation.

(I) Make its internal practices, books, and records relating to the use and disclosure of protected health information received from, or created or received by the business associate on behalf of, the covered entity available to the Secretary for purposes of determining the covered entity's compliance with this subpart; and

(J) At termination of the contract, if feasible, return or destroy all protected health information received from, or created or received by the business associate on behalf of, the covered entity that the business associate still maintains in any form and retain no copies of such information, or if such return or destruction is not feasible, extend the protections of the contract to the information and limit further uses and disclosures to those purposes that make the return or destruction of the information infeasible. 45 CFR § 164.504(e)

1.2 HIPAA Security Rule Language

"A covered entity may permit a business associate to create, receive, maintain, or transmit electronic PHI on the covered entity's behalf only if the covered entity obtains satisfactory assurances, in accordance with § 164.316(a) (the Organizational Requirements) that the business associate will appropriately safeguard the information." 45 CFR § 164.308(b)(1).

"Document the satisfactory assurances required by paragraph (b)(1)of this section through a written contract or other arrangement with the business associate that meets the applicable requirements of § 164.314(a)." 45 CFR § 164.308(b)(3).

1.3 Purpose Statement

PeriGen shall comply with the Privacy and Security Rules regarding Business Associate Agreements and shall enter into a Business Associate Agreement with a Business Associate in advance of disclosing any PHI or ePHI or potential PHI. In any case where PeriGen acts a Business Associate under the HIPAA Privacy Regulations because it transmits, accesses,

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and/or maintains PHI or ePHI on behalf of another covered entity, it shall enter into a Business Associate Agreement with that Covered Entity in advance of receiving PHI or ePHI and enter into a Business Associate Agreement with any subcontractor in advance of disclosing or transmitting any PHI or ePHI to that party.

1.4 Policy/Procedure

1. PeriGen will enter into a Business Associate Agreement with each Business Associate with which it does business that causes the Business Associate to have access to, transmit or maintain PHI on behalf of PeriGen.
2. PeriGen will enter into a Business Associate Agreement with any subcontractor to which PeriGen intends to provide any PHI of that Covered Entity.
3. The Chief Financial Officer will be responsible for keeping a list of all Business Associates along with their contact information as well as a file containing all Business Associate Agreements signed by PeriGen. If the Chief Financial Officer or others in PeriGen's management cannot determine whether a vendor or other entity is a Business Associate, the Chief Financial Officer will consult with legal counsel in order to obtain advice regarding whether a Business Associate Agreement is required.
4. In the Business Associate Agreement, the Business Associate will acknowledge, among other things, that the Business Associate will appropriately safeguard ePHI and the ePHI Systems on which such information is stored and utilized through the implementation of its Security Policies and Procedures that fully comply with the HIPAA Security Regulations.
5. Sample Business Associate Agreements are provided below.

1.5 Administrative

Responsibility: Chief Financial Officer

Definitions: ePHI; PHI; Business Associate; Covered Entity; Vendor

Regulatory Category: Administrative Safeguards

Regulatory Reference:

- 45 C.F.R. §§164.308(b)(1)-(b)(4), Business Associate Contracts and Other Arrangements [Standard; Required]
- 45 C.F.R. §164.314(a)
- 45 C.F.R. §164.502(e); 164.504(e), Uses and Disclosures of Protected Health Information: General Rules; Uses and Disclosures: Organizational Requirements

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2 Breach Notification

2.1 HIPAA Breach Notification Rule Language:

"A business associate shall, following the discovery of a breach of unsecured protected health information, notify the covered entity of such breach." 45 CFR § 164.410(a)(1)

"A breach shall be treated as discovered by a business associate as of the first day on which such breach is known to the business associate or, by exercising reasonable diligence, would have been known to the business associate. A business associate shall be deemed to have knowledge of a breach if the breach is known, or by exercising reasonable diligence would have been known, to any person, other than the person committing the breach, who is an employee, officer, or other agent of the business associate" 45 CFR § 164.410(a)(2)

"A business associate shall provide the notification required by paragraph (a) of this section without unreasonable delay and in no case later than 60 calendar days after discovery of a breach." 45 CFR § 164.410(b)

2.2 Purpose Statement

As a Business Associate, PeriGen must report Breaches to the affected Covered Entity, whose unsecured PHI has been or is reasonably believed by the Business Associate to have been, accessed, acquired, used, or disclosed. A Business Associate shall provide notification required without unreasonable delay and in no case later than 60 calendar days of discovery of the Breach.

2.3 Policy/Procedure

2.3.1 Breaches

1. This Breach Notification Policy applies only to PHI that is "unsecured." Under HIPAA, "Unsecured" PHI is that PHI which is not secured through a technology or methodology that HHS has stated renders the PHI unusable, unreadable, or indecipherable to unauthorized individuals. Data would not be considered "secured" if it was encrypted data but the decryption key was breached or otherwise available to an unauthorized recipient
2. PHI is secured through encryption (for ePHI) or destruction (for PHI in all other formats).
3. PeriGen will take all measures necessary to secure PHI in accordance with the Device and Media Controls, Technical Access Controls and Transmission Security Policies included in this manual.
4. In addition, the following occurrences are not Breaches:
   a. Any unintentional acquisition, access, or use of PHI by a Workforce Member, or individual acting under the authority of PeriGen if:
      i. Such acquisition, access, or use was made in good faith and within the course and scope of the employment or other professional relationship of such Workforce Member or other individual, respectively, with PeriGen; and
      ii. Such information is not further acquired, accessed, used, or disclosed by any person.

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b. Any inadvertent disclosure from an individual who is otherwise authorized to access PHI at a facility operated by PeriGen to another similarly situated individual at the same facility and any such information received as a result of such disclosure is not further acquired, accessed, used, or disclosed without authorization by any person.

2.3.2 Discovery of breach

1. Any Workforce Member who discovers a suspected Breach must immediately notify the Privacy & Security Officer. The Workforce Member may notify the Privacy & Security Officer of the occurrence of a suspected or potential Breach in any format, including in writing, electronically, or orally. The Privacy & Security Officer will document the report of a potential Breach along with the date and time that he or she was notified of such event.
2. If the Breach is a Security Incident, the Privacy & Security Officer will investigate the Security Incident in accordance with the Security Incident Procedures Policy.
3. If the Breach is not a Security Incident, the Privacy & Security Officer will proceed as follows:
   a. The Privacy & Security Officer will notify PeriGen Leadership.
   b. The Privacy & Security Officer will notify legal counsel of the suspected Breach.
   c. If the potential Breach involves PHI that PeriGen received as a Business Associate, legal counsel will determine how the potential Breach should be reported. Legal counsel will also determine whether any additional notifications are required pursuant to applicable breach notification laws.
   d. In consultation with legal counsel and the Management Committee, the Privacy & Security Officer will conduct an initial review of the suspected Breach to determine whether a Breach occurred and, if so, the scope, magnitude and severity of the Breach; mechanisms for mitigating the harmful effects of the Breach; and, ways to remediate the vulnerability that lead to the Breach.
   e. PeriGen will use all appropriate measures to conduct and complete its review of the suspected Breach within a reasonable time after the discovery of the Breach. However, the review period must be complete within 5 days after the Breach's discovery.
   f. If the review shows that the Breach affected PHI owned and managed by another entity (hospital, health system, etc.), PeriGen will notify the entity immediately after the review period and no later than 60 days after discovery of the Breach.
   g. If the review shows that no Breach has occurred, the Privacy & Security Officer will document this in a report along with all of the information that supports such conclusion and no further investigations or procedures are required.

2.3.3 Breach notification

1. PeriGen will provide the following information to the Covered Entity for whose unsecured PHI has been, or is reasonably believed to have been, accessed, acquired, used, or disclosed as a result of such breach:

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a. A brief description of what happened, including the date of the breach and the date of the discovery of the breach, if known.
b. A description of the types of unsecured PHI that were involved in the breach (such as whether full name, social security number, date of birth, home address, account number, diagnosis, disability code, or other types of information were involved).
c. Any steps individuals should take to protect themselves from potential harm resulting from the breach.
d. A brief description of what PeriGen is doing to investigate the breach, to mitigate harm to individuals, and to protect against any further breaches.
e. Recommendations as appropriate as to what the covered entity can do to investigate the breach, to mitigate harm to individuals, and to protect against any further breaches.

2. PeriGen will provide such information in plain language and by the methods set forth by HIPAA and state law.
3. The Privacy & Security Officer will retain all documentation regarding the Breach in accordance with the PeriGen Document Retention Policy.

2.3.4 Disciplinary Action

1. No Workforce Member who reports a suspected Breach that is caused by another Workforce Member will face retaliation from PeriGen.
2. Workforce Members who cause a Breach may be subject to disciplinary action.

2.4 Administrative

Responsibility: Privacy & Security Officer

Definitions: Breach; ePHI; PHI; Workforce Member

Regulatory Category: Privacy Regulations

Regulatory Reference:

- 45 C.F.R. §164.410 Notification by a Business Associate

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Appendix – HIPAA Business Associate Agreement

HIPAA Business Associate Agreement

This HIPAA Business Associate Agreement ("Agreement") is entered into by and between _____ ("Customer") and PeriGen, Inc. ("PeriGen"). Customer and PeriGen are each a "Party" and collectively the "Parties".

The Parties agree to be bound by the following terms and conditions:

RECITALS:

WHEREAS the Customer is a "Covered Entity" and PeriGen is a "Business Associate," each respectively subject to the Administrative Simplification provisions of the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), as amended and supplemented by the HITECH Act, and the regulations promulgated pursuant to each, including the Standards for Privacy of Individually Identifiable Health Information and the Security Standards for the Protection of Electronic Health Information at 45 C.F.R. Parts 160 and 164. HIPAA, the HITECH Act, and the regulations promulgated pursuant to each shall collectively be referred to herein as "HIPAA." All references herein to "Covered Entity" shall mean the Customer. All references herein to "Business Associate" shall mean PeriGen.

WHEREAS PeriGen is a "Business Associate" and provides services to the Customer as set forth in an underlying license and/or services agreement between the parties ("Underlying Agreement") to which this Agreement is attached as an Exhibit.

WHEREAS, in the course of providing such services to the Customer, PeriGen may come into contact with Protected Health Information ("PHI") of individuals who are patients of the Customer.

WHEREAS, this Agreement shall remain in effect during the entire period the Agreement is in effect. In addition, portions of this Agreement shall remain in effect subsequent to the termination of the Underlying Agreement, as provided in this Agreement.

NOW THEREFORE, the Parties agree as follows:

1. Definitions

Terms used, but not otherwise defined, in this Agreement shall have the same meaning as those terms in HIPAA and in the Underlying Agreement.

2. Appointment of Business Associate

The Customer hereby appoints PeriGen as its Business Associate under HIPAA to assist in providing services in connection with the Parties' Underlying Agreement.

3. Obligations and Activities of Business Associate

a) Business Associate acknowledges that it shall provide services consistent with the Parties' Underlying Agreement.
b) Business Associate represents and warrants that it will comply with HIPAA, as amended. Business Associate agrees to not use or further disclose PHI other than as permitted or required by the Underlying Agreement, this Agreement or as Required by Law.
c) Business Associate agrees to use appropriate safeguards to prevent use or disclosure of the PHI consistent with the HIPAA Security Rule (45 C.F.R. Part 160 and Subpart C of 45 C.F.R. Part 164). These shall include the establishment and maintenance of appropriate administrative, physical, and technical safeguards that reasonably and appropriately protect the confidentiality, integrity, and availability of PHI (whether electronic or otherwise). Business Associate will follow generally accepted system security principles and comply with the requirements of HIPAA.
d) Business Associate agrees to mitigate, to the extent practicable, any harmful effect that is known to Business Associate of a use or disclosure of PHI by Business Associate or any of its employees, agents or subcontractors (as such term is defined by HIPAA, hereinafter, "Subcontractors") in violation of the requirements of this Agreement or HIPAA.

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e) Business Associate agrees to report to Customer any use or disclosure of PHI not provided for by this Agreement of which Business Associate becomes aware, including breaches of unsecured PHI and Security Incidents ("Notifying Event"). Such report must be provided to Customer within ten (10) business days of Business Associate's discovery of such Notifying Event. Business Associate shall cooperate and coordinate with Customer to determine additional actions that may be required of Business Associate for mitigation of a Notifying Event. Business Associate otherwise agrees to comply with all requirements concerning breach notification as required by HIPAA.

f) Notwithstanding the foregoing, the parties agree to the following reporting procedure for Security Incidents that do not result in unauthorized access, use, disclosure, modification, destruction of Electronic Protected Health Information ("ePHI"), or interference with system operations ("Unsuccessful Security Incidents"). For Unsuccessful Security Incidents, the parties agree that this paragraph constitutes notice of such Unsuccessful Security Incidents. By way of example, the parties consider the following to be illustrative of Unsuccessful Security Incidents when they do not result in actual unauthorized access, use, disclosure, modification, destruction of ePHI, or interference with system operations: (i) pings on firewall; (ii) port scans; (iii) attempts to log on to a system or enter a database with an invalid password or username; (iv) denial-of-service attacks that do not result in a server being taken off-line; and (v) malware (worms, viruses, etc.).

g) Business Associate agrees to ensure that any agent, including a Subcontractor, to whom it provides PHI received from, or created or received by Business Associate on behalf of the Customer agree to the same restrictions and conditions that apply through this Agreement to Business Associate with respect to such information.

h) Business Associate agrees to provide access, at the request of the Customer, and in a reasonable time and manner, to PHI in a Designated Record Set, to the Customer or, as directed by the Customer, to an Individual in order to meet the requirements under 45 C.F.R. § 164.524. To the extent that such PHI is maintained in an Electronic Health Record, Business Associate agrees to produce a copy of such PHI in electronic format upon Customer's or a patient's request in accordance with HIPAA.

i) Business Associate agrees to make any amendment(s) to PHI in a Designated Record Set that the Customer directs or agrees to pursuant to 45 C.F.R. § 164.526 at the request of the Customer or an Individual, and in a reasonable time and manner.

j) Business Associate agrees to make internal Customers, books, and records relating to the use and disclosure of PHI received from, or created or received by Business Associate on behalf of, the Customer available to the Customer, or at the request of the Customer to the Secretary, in a reasonable time and manner, for purposes of the Secretary determining Customer's compliance with the Privacy Rule.

k) Business Associate agrees to document such disclosures of PHI and information related to such disclosures as would be required for the Customer to respond to a request by an Individual for an accounting of disclosures and to provide the Customer or an Individual, in a reasonable time and manner, information collected in accordance with this Agreement, to permit the Customer to respond to a request by an Individual for an accounting and disclosures of PHI in accordance with 45 C.F.R. § 164.528.

l) Business Associate agrees to restrict the use or disclosure of PHI to the minimum necessary, as required by HIPAA or requested by the Customer or an Individual, to accomplish the services and other obligations herein.

m) Business Associate agrees to comply with the prohibition on the sale of PHI without an Individual's authorization in accordance with HIPAA.

n) Business Associate agrees to comply with the restrictions on marketing set forth in HIPAA unless permitted by this Agreement and HIPAA.

o) To the extent that Business Associate is to carry out a Customer's obligation under Subpart E of 45 C.F.R. Part 164, Business Associate agrees to comply with the requirements of Subpart E that apply to the Customer in the performance of such obligation.

4. Permitted Uses and Disclosures by Business Associate

a) Except as otherwise limited in this Agreement, Business Associate may use or disclose PHI (i) as permitted in the Underlying Agreement or (ii) to perform functions, activities, or services for, or on behalf of, the Customer as specified in the Underlying Agreement, provided that in all such cases such use or disclosure would not violate the HIPAA if done by the Customer.

b) Except as otherwise limited in this Agreement, Business Associate may use PHI for the proper management and administration of the Business Associate or to carry out the legal responsibilities of the Business Associate.

c) Except as otherwise limited in this Agreement, Business Associate may disclose PHI for the proper management and administration of the Business Associate, provided that disclosures are required by law, or Business Associate obtains reasonable assurances from the person to whom the information is disclosed that it will remain confidential and be used or further disclosed only as required by law or for the purpose for which it was disclosed to the person, and the person notifies the Business Associate of any instances of which it is aware in which the confidentiality of the information has been breached.

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d) Except as otherwise limited in this Agreement, Business Associate may use PHI to provide data aggregation services as permitted by 45 C.F.R. § 164.504(e)(2)(i)(B).

5. Obligations of Customer

a) The Customer represents and warrants that it will comply with HIPAA as amended.
b) The Customer shall notify Business Associate of any limitations in its Notice of Privacy Customers to the extent that such limitation may affect Business Associate's use or disclosure of PHI.
c) The Customer shall provide Business Associate with any changes in, or revocation of, permission by Individual to use or disclose PHI, if such changes affect Business Associate's permitted or required uses and disclosures.
d) The Customer shall notify Business Associate of any restriction to the use or disclosure of PHI that Customer has agreed to in accordance with 45 C.F.R. § 164.522, to the extent that such restriction may affect Business Associate's use or disclosure of PHI.
e) The Customer shall provide Business Associate with a copy of its current Notice of Privacy Customers as required by 45 C.F.R. § 164.520 and will provide revised copies of the Notice should the Notice be amended in any way.

6. Permissible Requests by The Customer

The Customer shall not request Business Associate to use or disclose PHI in any manner that would not be permissible under the Privacy Rule if done by the Customer, except that the Business Associate may use or disclose PHI for data aggregation services in accordance with paragraph 4.(d), or management and administrative activities of Business Associate.

7. Term and Termination

a) Term. The Term of this Agreement shall be co-terminus with the Underlying Agreement. In addition, upon the Business Associate's or the Customer's ("Terminating Party") knowledge of a material breach by the other Party that is not curable, the Terminating Party may immediately terminate this Agreement. In the event that such breach is curable then the Terminating Party may immediately terminate this Agreement if such breach is not cured by the other Party within thirty (30) days of its receipt of written notice of the breach from the Terminating Party.
b) Continued Safeguard of Information. The Customer and Business Associate have mutually determined and agreed that return or destruction of the PHI created or received by Business Associate, its agents and Subcontractors, on behalf of Customer (including but not limited to that PHI contained in Business Associate's and its agents' and Subcontractors' data processing, data storage, and other computer systems): (i) is not feasible; and (ii) Business Associate and its agents and Subcontractors shall not be obligated to return or destroy such PHI. Notwithstanding the termination of this Agreement, Business Associate hereby agrees to extend (and to require its agents and Subcontractors to extend) the protections of this Agreement to such PHI to those purposes that make the return or destruction infeasible, for so long as Business Associate or its agents and Subcontractors maintain such PHI. This provision shall survive termination of this Agreement and the Underlying Agreement.

8. Miscellaneous

a) Regulatory References. A reference in this Agreement to a section in the Privacy Rule means the section as in effect or as amended, and for which compliance is required.
b) Amendment. The Parties acknowledge that state and federal laws relating to data security and privacy are evolving and that amendment of this Agreement may be required to ensure compliance with changes in the laws or regulations. The Parties specifically agree to take such action necessary to implement the standards and requirements of HIPAA or any other applicable federal or state privacy law or regulation relating to the security or privacy of information, or the exchange of health information by electronic means. Upon the effective date of any final regulation or amendment to HIPAA and any applicable state privacy law or regulation, and any implementing regulations issued by any regulatory authority having jurisdiction, this Agreement will automatically be amended such that the obligations they impose (or require the Customer to impose) on Business Associate will be deemed included in this without further action of the Parties, effective as of the required compliance date of such regulation or amendment.
c) Interpretation. Any ambiguity in this Agreement shall be resolved in favor of a meaning that permits the Customer and Business Associate to comply with the Privacy and/or Security Rule.
d) No Third Party Beneficiary Rights. Nothing express or implied in this Agreement is intended to give, nor shall anything herein give any person other than the Parties and the respective successors or assigns of the Parties, any rights, remedies, obligations, or liabilities whatsoever.
e) Entire Agreement. This Agreement along with the Underlying Agreement sets for the forth the entire agreement and understanding between the Parties as to the subject matter hereof and supersedes all prior discussions, agreements

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and understandings relating to such subject matter. This Agreement is incorporated into and made a part of the Underlying Agreement as an exhibit thereto.

CUSTOMER: _____

Signature: _____

By: _____

Title: _____

Date: _____

PERIGEN, INC.

Signature: _____

By: _____

Title: _____

Date: _____

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Signatures:

Document approval:	I approve this document		
Name:	**Brian Bishop** **perigen.com\brian.bishop**	Title:	
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